

covered by the closure of the proceedings (see T 41/82, OJ 1982, 256; T 89/84, OJ 1984, 562; J 12/86, OJ 1988, 83; T 773/91 and J 37/97).

7.3.3 Partial withdrawal of appeal by sole appellant and opponent

Partial withdrawal of an appeal by the sole appellant (opponent) following an allowable limitation of the patent's subject-matter under Art. 123 EPC 1973 during appeal proceedings deprived the board of its discretionary power to examine the substantive merits of the remaining, limited subject-matter. The patent had to therefore be granted in its amended form (T 6/92 and T 304/99). In T 127/05 the board recalled that an opponent who was the sole appellant had the possibility of withdrawing his appeal if he found that the outcome would be disadvantageous to himself. In G 7/91 and G 8/91 (OJ 1993, 346 and 356) the Enlarged Board of Appeal ruled that as far as the substantive issues settled by the decision at first instance were concerned, appeal proceedings were terminated when the sole appellant withdrew his appeal. It followed that an opponent who was the sole appellant could, if he so wished, force the non-appealing patent proprietor to "live with" a deficiency which he had introduced. A patent proprietor who filed an appeal could prevent himself from being placed in such a situation. The board also did not agree that decision G 1/99 (OJ 2001, 381) restricted amendment to a response to an objection first raised in appeal proceedings.

7.3.4 No withdrawal of appeal with retrospective effect

The mere fact that a representative had filed a notice of appeal before taking note of the appellant's adverse instruction did not justify a correction to the effect that no appeal had been filed. The request amounted to a withdrawal of the appeal with retrospective effect, which was not provided for in the EPC (T 309/03, OJ 2004, 91).

7.3.5 Request for withdrawal of appeal to be unambiguous

effective withdrawal does not depend on the term "withdrawal" being used (J 7/87, OJ 1988, 422); a request for withdrawal should only be accepted without question if it is completely unqualified and unambiguous (J 11/80, OJ 1981, 141); and where any doubt as to a party's intent exists, the declaration made can be construed as a withdrawal only if the related subsequent facts confirm that such is the party's true intent (J 11/87, OJ 1988, 367).

A notice of abandonment of the patent was held to be tantamount to withdrawing the appeal in T 1003/01. In T 60/00, however, the appellant's statement that it had decided not to pursue the appeal was not regarded as unambiguous withdrawal of the appeal. In T 2347/11 of 16 October 2012 the letter of "withdrawal" of an application in this case did not relate unambiguously and without doubt to the case at issue and thus could not be understood as withdrawal of the appeal. See also T 2514/11 and T 158/16.

According to the board in T 1244/08, where an appellant holding a patent revoked by an opposition division stated that it did not agree with the text of the patent as granted and

was not proposing an amended one, this was tantamount to a withdrawal of the appeal and immediately brought the proceedings to an end.

7.3.6 Conditional withdrawal of appeal

Procedural declarations may be made with the proviso that certain conditions are met, as long as a case is already pending (J 16/94, T 854/02) and these conditions do not concern facts outside the proceedings (T 502/02). Thus, whereas a conditional appeal is not possible, the conditional withdrawal of an appeal may be valid (T 6/92, T 304/99). However, the withdrawal of an appeal can take effect only if the appeal is still pending (T 1402/13 of 25 February 2016).

When an appellant has clearly withdrawn his appeal, the appeal proceedings can be closed without a reasoned written decision, even if the appellant has appended to his declaration of withdrawal an obviously non-allowable request for a refund of the appeal fee (T 1142/04).

7.3.7 Correction of withdrawal of appeal under Rule 139 EPC

In T 610/11 the board came to the conclusion that the declaration submitted by the appellant's representative to withdraw the appeal could not be considered to contain an error to be corrected under R 139 EPC. The board stated that the representative did not make any error when declaring the withdrawal of the appeal. Rather, the appellant gave instructions to the representative, which, as it turned out later, did not represent its true intention. In other words, an error occurred during the process of deciding how the appellant should deal with the application. The board referred to the jurisprudence of the boards of appeal according to which, as a general rule, an applicant is bound by its procedural acts notified to the EPO, provided that the procedural statement was unambiguous and unconditional (cf. J 11/87, OJ 1988, 367; J 27/94, OJ 1995, 831), and is not allowed to reverse these acts so that they can be considered as never filed (J 10/87, OJ 1989, 323; J 4/97). The board concluded that in cases where a professional representative acts on behalf of an appellant, an error or mistake in a procedural declaration before the boards of appeal can be corrected under R 139 EPC only if this error or mistake has been made by the representative himself (see also J 19/03).

7.4. Deemed withdrawal of patent application

If a European patent application is finally deemed to be withdrawn after an admissible appeal against a decision refusing it has been filed, the appeal can usually be considered disposed of, because there is no possibility of a European patent being granted for the application. However, where, as in the case before the board, the sole aim of the appeal is to obtain a finding by the board that a substantial procedural violation occurred in the first instance proceedings, such that the appealed decision is to be set aside and the appeal fee reimbursed, the appeal cannot be dealt with in this way. In these circumstances the appellant has a legitimate interest in receiving a decision on the merits of the appeal (T 2434/09).

7.5. Legitimate interest in the continuation of the grant and the appeal proceedings

In T 36/19 the application was pending for more than 20 years. As the term of a European patent amounts to 20 years from the date of filing (Art. 63(1) EPC), a patent which may eventually be granted for the present application will have already expired. The board nevertheless considered that the appellant still had a legitimate interest in the continuation of the grant and the appeal proceedings. Since a European patent application already confers rights after its publication pursuant to Art. 67 EPC, a grant decision by the European Patent Office, even if taken only after expiry of the patent term, might become relevant for the determination of these rights.

8. Reasons for the decision

8.1. Reasons in abridged form

8.1.1 Abridged reasons under Art. 15(7) RPBA 2020

Under Art. 15(7) RPBA 2020, the reasons for the decision, or parts thereof, may, with the explicit consent of the parties, be put in writing in abridged form.

In T 1497/17, the parties agreed that an abridged decision within the meaning of Art. 15(7) RPBA 2020 and referring to what the board had set out in its summons could be issued on the points of novelty and inventive step. See also T 561/18, T 947/19 and T 1050/19.

8.1.2 Abridged reasons under Art. 15(8) RPBA 2020

Art. 15(8) RPBA 2020 states: If the Board agrees with the finding of the department which issued the decision under appeal, on one or more issues, and with the reasons given for it in the decision under appeal, the Board may put the reasons for its decision in abridged form in respect of that issue.

In T 1687/17 the board noted that all the relevant arguments raised by the parties during the appeal proceedings had already been put forward and considered in the first-instance proceedings. No new arguments had been presented on appeal, as acknowledged by the parties at the oral proceedings. On all issues, the board agreed with the opposition division's findings and the reasons given for the contested decision and so considered it expedient to put its decision in abridged form in respect of all those issues, as per Art. 15(8) RPBA 2020.

In T 2227/15 the board stated that in accordance with Art. 15(8) RPBA 2020, the reasons for its decision were given in abridged form for those issues in respect of which the board agreed with the findings of the opposition division. This clearly did not apply to the appellant's submissions which contained issues on which the impugned decision was not based within the meaning of Art. 12(2) RPBA 2020. Recourse to Art. 15(8) RPBA 2020 required that the board agreed with the findings and reasoning of the decision under appeal in respect of one or more issues. The board concluded from this precondition of

concurrence with (parts of) the decision under appeal as well as from the legislator's intention (see explanatory notes to Art. 15(7) and (8) RPBA 2020) that in the reasons for the decision in hand it was possible for the board to refer to those parts of the findings and reasons in the decision under appeal with which it agreed. The board followed the similar approach in decision T 1687/17. See also T 2555/16 and T 1418/17.

8.1.3 Decisions issued in written proceedings

It is the boards' settled case law that a party's announcement that it will not be attending scheduled oral proceedings is to be treated as equivalent to a withdrawal of its request for those proceedings (see e.g. T 3/90, OJ 1992, 737). In such cases, the oral proceedings can be cancelled (see also T 166/17) and a decision can be issued in written proceedings under Art. 12(8) RPBA 2020 (T 2646/16).

9. Remittal to the department of first instance

9.1. General

9.1.1 Article 111(1) EPC

Under Art. 111(1) EPC, the boards, having examined the allowability of an appeal, decide on it either by exercising any power within the competence of the department which was responsible for the decision appealed or by remitting the case to that department for further prosecution. Art. 111(1) EPC thus establishes the legal framework for the decision-making powers of the boards.

Which of these two options the board chooses will depend on the specific facts of the case before it and is a matter for its discretion.

9.1.2 Article 11 RPBA 2020

Under Art. 11 RPBA 2020 the board shall not remit a case to the department whose decision was appealed for further prosecution, unless special reasons present themselves for doing so. As a rule, fundamental deficiencies which are apparent in the proceedings before that department constitute such special reasons.

The new RPBA 2020 entered into force on 1 January 2020 (Art. 24 and 25(1) RPBA 2020). Art. 11 RPBA 2020 was completely revised and applies to any appeal pending on, or filed after, that date of entry into force.

According to the explanatory remarks on Art. 11 RPBA 2020 (Supplementary publication 2, OJ 2020), the aim of the new provision is to reduce the likelihood of a "ping-pong" effect between the boards and the departments of first instance and a consequent undue prolongation of the entire proceedings before the EPO. When exercising their discretion under Art. 111 EPC, the boards should take account of this aim. Whether "special reasons" present themselves is to be decided on a case-by-case basis. The

boards should not normally remit a case if they can decide all the issues without undue burden. Decisions T 1531/16, T 1089/17 and T 335/18 referred to these remarks.

In T 2154/15 it was further clarified that the RPBA could not deprive the boards of the discretion conferred on them by Art. 111(1) EPC, a point which was explicitly codified in the RPBA themselves, specifically in Art. 23 RPBA 2020: the RPBA did not limit the powers of the boards established in Art. 111 EPC.

In T 350/17 the board noted that the concept of "special reasons" in Art. 11 RPBA 2020 should not be narrowly interpreted in a way which unduly restricts the discretion of the board to remit a case enshrined in Art. 111(1) EPC, as this would be contrary to the spirit of the Convention, which, in case of conflict, takes precedence (see Art. 23 RPBA 2020).

9.1.3 Art. 11 RPBA 2007

Under the old Art. 11 RPBA 2007, the boards were to remit a case to the department of first instance if fundamental deficiencies were apparent in the first-instance proceedings, unless special reasons presented themselves for doing otherwise.

A summary of decisions handed down pursuant to Art. 11 RPBA 2007 can be found in the Case Law of the Boards of Appeal, 9th edition, 2019, V.A.7. The factors considered by the boards when deciding whether to remit a case included procedural economy (9th edition, 2019, V.A.7.3), non-examined patentability issues (9th edition, 2019, V.A.7.4), new submissions filed on appeal (9th edition, 2019, V.A.7.5), substantial amendments to claims (9th edition, 2019, V.A.7.6) and fundamental deficiencies in the first-instance proceedings (9th edition, 2019, V.A.7.7).

9.2. Exercise of discretion to remit

9.2.1 No absolute right to have issue decided on at two instances

It is the boards' settled case law that parties do not have a fundamental right to have their case examined at two levels of jurisdiction. Accordingly, they have no absolute right to have each and every matter examined at two instances; Art. 111(1) second sentence, EPC leaves it instead to the board's discretion to decide on an appeal either by exercising any power conferred on the department of first instance or by remitting the case to that department (R 9/10, T 83/97, T 133/87, T 557/94, T 402/01 of 21 February 2005, T 399/04, T 1252/05, T 1363/10, T 1803/14, T 1521/15, T 418/17, T 113/18). In choosing what to do, the board must consider the circumstances of the individual case, also bearing in mind other factors such as the need for procedural economy (T 392/89 of 3 July 1990, T 1376/07, T 1253/09, T 2266/13). It is well-recognised that any party should, where possible, be given the opportunity to have two readings of the important elements of a case (T 1084/03, T 1907/06, T 286/09, T 1627/17).

In T 2839/19 the board stated that, although there was no absolute right to have an issue decided upon at two instances, it was also not the function of the board to consider and decide upon issues which had not been examined at all by the department of first instance.